

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF MATVEYEV AND OTHERS v. RUSSIA

(Applications nos. 79121/17 and 12 others –
see appended list)

JUDGMENT

STRASBOURG

1 June 2023

This judgment is final but it may be subject to editorial revision.



In the case of Matveyev and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Faris Vehabović*, President*,
Armen Harutyunyan,
Anja Seibert-Fohr*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 11 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016,

concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (CAO)).

V. REMAINING COMPLAINTS

14. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings and alleged restrictions on the right to examine witnesses.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a

rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 1 June 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Faris Vehabović President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	79121/17 01/11/2017	**Mikhail Nikolayevich MATVEYEV** 1968	Glukhov Aleksey Vladimirovich Novocheboksarsk	Opposition demonstration Samara 23/04/2017	Article 20.2 § 3 of CAO	fine of RUB 30,000	Samara Regional Court 08/06/2017	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention on 23/04/2017, detention in excess of 3 hours	4,000
2.	3103/18 11/12/2017	**Natalya Romanovna SINYAKOVA** 1997	Pyshkin Valentin Valentinovich St Petersburg	Opposition demonstration St Petersburg 29/04/2017	Article 20.2 § 5 of CAO	fine of RUB 5,000	St Petersburg City Court 27/06/2017	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings.	3,500
3.	3530/18 11/12/2017	**Dmitriy Anatolyevich NEGODIN** 1971	Pyshkin Valentin Valentinovich St Petersburg	Opposition demonstration St Petersburg 29/04/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	St Petersburg City Court 13/06/2017	Art. 5 (1) - unlawful deprivation of liberty - arrest on 29/04/2017 at approximately 2.45 p.m. on 29/04/2017, brought to a police station to draw up a record of administrative offence; released on the same day around 11.00 p.m.; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	20425/18 16/04/2018	**Yanis Aleksandrovich OBLAKOV** 1996	Zhdanov Ivan Yuryevich Vilnius	Anti-corruption manifestation Moscow 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 24/10/2017	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention on 12/06/2017 for the sole purpose of compiling a record of administrative offence; detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	4,000
5.	25022/18 10/05/2018	**Oksana Petrovna VOLOBUYEVA** 1973		"Free people strall" of Artpodgotovka Tyumen 01/10/2017	Article 20.2 § 2 of CAO	fine of RUB 20,000	Tyumen Regional Court 22/11/2017	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention on 01/10/2017 for the sole purpose of drawing up a record of administrative offence.	4,000
6.	27751/18 06/06/2018	**Yuliya Yevgenyevna FEDOTOVA** 1992	Zhdanov Ivan Yuryevich Vilnius	Rally supporting A. Navalnyy's candidacy for President Yekaterinburg 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 06/12/2017	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	3,500
7.	28769/18 03/06/2018	**Sergey Yevgenyevich RYZHOV** 1984	Charskiy Vladimir Valentinovich Saratov	"Opposition Walk" Saratov 08/10/2017	Article 20.2 § 8 of CAO	80 hours of community labour	Saratov Regional Court 04/12/2017	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	3,500

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8.	29431/18 04/06/2018	**Kirill Maksimovich BELOUSOV** 1993	Yelanchik Oleg Aleksandrovich Moscow	Anti-corruption manifestation Moscow 12/06/2017 Anti-corruption manifestation Moscow 12/03/2018 Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO Article 20.2 § 8 of CAO Article 20.2 § 5 of CAO	fine of RUB 20,000 fine of RUB 150,000 fine of RUB 20,000	Moscow City Court 04/12/2017 Moscow City Court 14/03/2019 Moscow City Court 30/10/2019	Art. 5 (1) - unlawful deprivation of liberty - detention on 12/06/2017 and on 27/07/2019, both times in excess of 3 hours, and for the sole purpose of compiling a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in all three sets of administrative-offence proceedings	6,000
9.	29540/18 08/06/2018	**Mikhail Arnoldovich BUDARIN** 1984	Romanov Pavel Valeryevich Cheboksary	Manifestation against state authorities ("walk of free people") Cheboksary 29/10/2017	Article 20.2 § 2 of CAO	28 hours of compulsory work	Supreme Court of the Chuvashia Republic 15/12/2017		3,500

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10.	29550/18 08/06/2018	**Rustem Alfredovich GAREYEV** 1960	Romanov Pavel Valeryevich Cheboksary	Manifestation against state authorities ("walk of free people") Cheboksary 29/10/2017	Article 20.2 § 2 of CAO	32 hours of compulsory work	Supreme Court of the Chuvashia Republic 12/12/2017		3,500
11.	29555/18 08/06/2018	**Sergey Yuryevich ZAKHAROV** 1986	Romanov Pavel Valeryevich Cheboksary	Manifestation against state authorities ("walk of free people") Cheboksary 29/10/2017	Article 20.2 § 2 of CAO	28 hours of compulsory work	Supreme Court of the Chuvashia Republic 19/12/2017	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention on 14/11/2017, escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours	4,000
12.	30511/18 11/06/2018	**Yelena Gennadyevna VOYEVODINA** 1964	Romanov Pavel Valeryevich Cheboksary	Manifestation against state authorities ("walk of free people") Cheboksary 29/10/2017	Art.20.2 § 2 of CAO	32 hours compulsory service	Supreme Court of the Chuvashia Republic 12/12/2017		3,500
13.	49810/18 10/10/2018	**Oleg Sergeyevich SAVVIN** 1988	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of A. Navalnyy's candidacy for the presidential election	Article 20.2 § 5 of CAO	20 hours of community work	Kaliningrad Regional Court 24/05/2018	Art. 5 (1) - unlawful deprivation of liberty - lack of any legal grounds for his arrest and escorting to the police station on 02/02/2018 (it appears that the purpose was to draw up a record of the administrative offence related to the events on 28/01/2018);	4,000

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				Kaliningrad 28/01/2018 Opposition rally Kaliningrad 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 13,000	Kaliningrad Regional Court 09/08/2018	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in both sets of the administrative-offence proceedings	

[1] Plus any tax that may be chargeable to the applicants.